



STATE OF RHODE ISLAND JUDICIARY

DISTRICT COURT

ANSWER DEFENDANT/TENANT

	Civil Action File Number
Plaintiff/Landlord	Attorney for the Plaintiff/Landlord or the Plaintiff/Landlord
Defendant/Tenant	Address of the Plaintiff/Landlord's Attorney or the Plaintiff/Landlord
Attorney for the Defendant/Tenant or the Defendant/Tenant	Address of the Defendant/Tenant's Attorney or the Defendant/Tenant

☐ Murray Judicial Complex 2 nd Division District Court 45 Washington Square Newport, Rhode Island 02840-2913 (401) 841-8350	☐ Noel Judicial Complex 3 rd Division District Court 222 Quaker Lane Warwick, Rhode Island 02886-0107 (401) 822-6750
☐ McGrath Judicial Complex 4 th Division District Court 4800 Tower Hill Road Wakefield, Rhode Island 02879-2239 (401) 782-4131	☐ Garrahy Judicial Complex 6 th Division District Court One Dorrance Plaza Providence, Rhode Island 02903-2719 (401) 458-5400

INSTRUCTIONS TO THE DEFENDANT/TENANT

Listed below are several possible defenses to the eviction action that the Plaintiff/Landlord has filed against you. If one or more of these defenses apply to your case, check the appropriate box(es). If space is provided, write in facts in support of that defense. Use additional paper if necessary. Some of these defenses are technical and there may be others not listed here. You may consult a lawyer and seek representation before filling out this Answer. **If you receive a court date you must appear in court for the hearing.**



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☐ The complaint against me is untrue or fails to state the following facts:

Please check one (1) of the following:

☐ I have offered rent, but the Plaintiff/Landlord refused it. I am still able and willing to pay the rent.

☐ I have a defense for nonpayment because the Plaintiff/Landlord has failed to maintain the premises in a fit and habitable condition.

☐ My rent has not been paid, but I have a legally justifiable defense for not paying:

☐ I have a written lease which does not expire until _____.

☐ I have not received the required notice from the Plaintiff/Landlord before this Complaint was served on me.

☐ The Plaintiff/Landlord is trying to evict me because I have exercised my legal rights by calling code enforcement officials or by taking the following protected action:

☐ I have other defenses as follows: _____

WHEREFORE, because of the defense(s) indicated above, I ask that the court to grant judgment in my favor and not order me to be evicted.

COUNTERCLAIM

Instructions: If you believe that you are entitled to be awarded damages or money for any reason from the Plaintiff/Landlord, you may fill out the statement below:

1. I hereby sue the Plaintiff/Landlord for the amount of \$_____.



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2. I believe that I am entitled to receive an award of this amount because _____

/s/ _____ Attorney for the Defendant/Tenant or the Defendant/Tenant	Rhode Island Bar Number: Date:
Telephone Number: _____	

CERTIFICATE OF SERVICE

I hereby certify that, on the _____ day of _____, 20____:

☐ I filed and served this document through the electronic filing system on the following parties:

_____.
The document electronically filed and served is available for viewing and/or downloading from the Rhode Island Judiciary's Electronic Filing System.

☐ I served this document through the electronic filing system on the following parties:

_____.
The document electronically served is available for viewing and/or downloading from the Rhode Island Judiciary's Electronic Filing System.

☐ I mailed or ☐ hand-delivered this document to the attorney for the opposing party and/or the opposing party if self-represented, whose name is _____ at the following address _____.

/s/ _____
Name



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Plaintiff	Civil Action File Number
Defendant	

Continuation page if needed.

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